

Ram Prasad v. P.V.V.N.L.

High Court of Judicature at Allahabad · Division Bench · 12 May 2016 · Writ-C No. 21942 of 2016 · **Writ disposed of; relegated to clause 6.5(b); recovery stayed four weeks.**

HEADNOTE

A consumer who challenges recovery of electricity dues by disputing the accuracy of the bill, raising disputed questions of fact, is to be relegated to the complaint under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The writ is disposed of with liberty to complain before the competent authority within a fixed time, with a short stay of recovery pending that complaint.

FACTUAL SUMMARY

Ram Prasad approached the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Limited and two others, challenging recovery proceedings initiated by the distribution licensee for outstanding electricity dues. The writ also questioned the correctness of the electricity bill that formed the basis of the recovery. After hearing counsel for both sides, the Court recorded that the petitioner was disputing the accuracy of the bill and that recovery had already been set in motion on that bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-complaint

HOLDING

Where a consumer challenges recovery of outstanding dues by disputing the accuracy of the bill and disputed questions of fact are involved, clause 6.5(b) of the U.P. Electricity Supply Code, 2005 supplies the complaint before the competent authority. The writ court will dispose of the petition with liberty to make that complaint within a stipulated time, direct the authority to decide it in accordance with law, and keep recovery in abeyance for a short period pending that decision.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND THE RECOVERY FOUNDED ON IT

Left to the competent authority under clause 6.5(b); the writ was not decided on merits because disputed questions of fact were involved. ¶ 1